



CHAPTER i.

An Act to amend the Yorkshire Registries Act 1884 in its application to the West Riding of the county of York.
[29th March 1944.]

WHEREAS by the Yorkshire Registries Act 1884 (hereinafter referred to as "the Act of 1884") certain Acts theretofore in force under the provisions of which register offices were established for the registration of deeds conveyances wills incumbrances and other matters affecting lands and hereditaments within the three ridings of the county of York and the city and county of Kingston-upon-Hull (therein referred to as "the town and county of the town of Kingston-upon-Hull") were repealed and the said provisions consolidated and amended: 47 & 48 Vict. c. 54.

And whereas the Act of 1884 contains (inter alia) provisions for the appointment by the county authorities of each of the said ridings of persons to hold the office of registrar for the respective ridings and by section 37 of the said Act it is (inter alia) provided that no such registrar shall either by himself or in partnership with any other person follow any other calling or profession during the time he holds such appointment:

And whereas the county councils of the said ridings are by virtue of the Local Government Act 1888 the authorities for administering the Act of 1884 within their respective ridings: 51 & 52 Vict. c. 41.

And whereas with a view of effecting financial saving it is expedient that the provisions of the said section 37 of the Act of 1884 in their application to the West Riding should be amended as by this Act provided:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5. c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited for all purposes as the Yorkshire Registries (West Riding) Amendment Act 1944.

Interpretation.

2. In this Act the following words and expressions have the several meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

“ The West Riding Council ” means the county council of the West Riding of the county of York;

“ The West Riding ” means the West Riding of the county of York;

“ The Act of 1884 ” means the Yorkshire Registries Act 1884.

Amending
Yorkshire
Registries Act
1884 as to
qualification
of registrar.

3. Section 37 (Appointment of Officers &c.) of the Act of 1884 in its application to the West Riding but not further or otherwise is hereby amended in the following manner (that is to say):—

(1) The said section shall be read and have effect as if there were added at the end of subsection (1) thereof the words “ except for such period and upon and subject to such terms and conditions as may in each case be approved by the Lord Chancellor ”:

(2) Any person being the clerk of the West Riding Council and being a barrister or solicitor of not less than seven years' standing shall for the purposes of the said section (but subject to the proviso to subsection (1) of that section and to the concluding paragraph of that subsection as amended by subsection (1) of this section) be deemed to be qualified for appointment as registrar for that riding.

Costs of Act.

4. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the West Riding Council as payments for general county purposes within the meaning of the Local Government Act 1933.

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